

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN THE DOMINICAN REPUBLIC

Complete Community Opposition How-To

*This guide uses the Dominican terms and bodies you'll actually run into — the **licencia** and **permiso ambiental**, the **DIA** and the **EIA**, the **consulta pública**, the **acción de amparo** and the **amparo de cumplimiento**, the **Tribunal Superior Administrativo** and the **Tribunal Constitucional** — and explains each in plain words the first time. Two things do most of the work here: a public environmental study you are entitled to, and a free, informal **amparo** that anyone can bring.*

INTRODUCTION & FRAMEWORK

Loma Miranda is a mountain in La Vega — one of the most biodiverse in the country and the source of a watershed that feeds the Dominican Republic's largest rice fields. When the mining company **Falcondo** (owned by **Glencore**) moved to dig nickel from it, the country said no. Campesinos who drink and farm from its springs, environmental groups, the **Dominican Academy of Sciences**, and — powerfully — the **Catholic Church** (the La Vega bishop and the priest **Rogelio Cruz**) built a national campaign: marches across the country, a **permanent protest camp** on the mountain, and a drive to make Loma Miranda a national park. More than **80% of Dominicans backed a mining ban**. In **August 2014, Congress passed a law declaring Loma Miranda a National Park**. President Medina **vetoed it in September** — but he could not approve the mine either, and **no mining has ever broken ground**. A mountain a company had defined as its last reserve of ore is, by the people's decision, still standing.

The campesinos, scientists, and Catholic Church who held Loma Miranda drew on tools that give Dominican communities two unusual advantages. First, the environmental study is, **by statute, a public document subject to discussion** — you are entitled to it. Second, the **acción de amparo** — the constitutional remedy — is **free, informal, oral, and open to anyone**, may be brought **to protect collective and diffuse interests**, lies **against public authorities or private persons**, and can be used **to compel compliance with a law or an administrative act**. That last power is remarkable: a community can sue the State itself for failing to enforce its own environmental decisions — and Dominican courts have done exactly that, ordering action inside a national park. But these tools have real limits, and this guide states them plainly, because Loma Miranda's win is real but unfinished. The protective law was **vetoed and annulled**; the concession **still exists**; the company still speaks of environmental studies; and the fight has drawn **repression** — protesters injured and jailed, and suspected arson set on the mountain. A Dominican victory can be a mountain held, not a mountain formally protected — so the movement keeps its camp and its vigilance. But it shows that here, an organised public and a well-used **amparo** can stop a mine.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals, and a chain breaks at its weakest link. A Dominican project needs its **environmental authorisation** (the **licencia** or **permiso ambiental**) from the environment ministry, resting on a **DIA/EIA** and a **consulta pública**; it can be challenged — or the State compelled to enforce — through the **acción de amparo** for collective and diffuse rights; and — the Loma

Miranda lesson — it needs a public acceptance it cannot manufacture. Every one of those is a link you can grab. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **The free, informal amparo for collective and diffuse rights is your sharpest lever** — you can even sue the ministry for failing to enforce its own decisions.
- **The environmental study is a public document** — get it, and use it.
- **If public feeling is strong, mass mobilisation works** — Loma Miranda united a nation and the Church.
- **A win can be unfinished** — the protective law was vetoed, so hold the mountain and keep the vigilance.

Read the whole guide once before you move. Two habits run through it: **use the two gifts the law gives you** — the public study and the free amparo — precisely and early, and **combine them**: the documents, the consultation, the amparo, mass mobilisation, the press. The combination that works here is **the public study plus a well-framed amparo for collective and diffuse interests**.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

The environmental gate is the **licencia/permiso ambiental**, granted by the **environment ministry** under **Law 64-00**, on a **DIA or EIA** whose depth depends on the project's category (A, B, C, D), with a **consulta pública** for the more damaging. A **management programme (PMAA)** governs operation. Sector authorities grant mining and other rights. And above all sits the **acción de amparo** before the **Tribunal Superior Administrativo** and the **Tribunal Constitucional** — which can annul an authorisation, or **compel the State to enforce** its own decisions. Know which decision you can reach, and remember the amparo can reach the ministry itself.

How a Project Moves — and Where You Jump In

The DIA/EIA and the consulta pública. The developer's study goes to the ministry with, for major projects, a **public consultation**. *Your opening* — *and it arms every later step*: demand the study (it is public by statute), and object in the consultation.

The authorisation. The ministry grants the licencia or permiso. *Your opening*: challenge it by amparo — or, if it's the lighter route, demand a full EIA.

Operation. *Your opening*: works without authorisation can be halted; a management programme can be enforced; and an amparo can **compel the ministry to enforce its own decisions**.

Enforcement failure. *Your opening* — *distinctive*: the **amparo de cumplimiento** to make the State act.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — a foreign parent is sensitive to reputation (Loma Miranda's Falcondo is Glencore-owned). **What it still needs** — the authorisation not final, the full EIA

not done, the consultation not held: whatever's missing is the soft spot. **Who's paying** — banks and investors with their own standards.

Who's Supposed to Be Watching

Each is an ally or an arena. The **environment ministry** grants the authorisation and can be pressed — or compelled by amparo. The **Tribunal Superior Administrativo** and **Tribunal Constitucional** hear the amparo. The **environmental prosecutor** pursues environmental crime, and a minister's conduct can be referred to the **public prosecutor**. And the Dominican Republic's **strong environmental movement, its scientific academies, the Catholic Church, and a free press** are the forces that reach furthest — the combination that has held Loma Miranda.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether you use the public study and a well-framed amparo, and how strong public feeling is.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Getting the public study + objecting in the consulta	15–35%	during licensing	low	On record; conditions or a full EIA
Amparo (collective/diffuse rights)	30–55%	months–1 yr	free	Authorisation annulled; action ordered
Amparo de cumplimiento (compel enforcement)	25–50%	months–1 yr	free	The State forced to enforce its own decisions
Forcing a full EIA / halting unauthorised works	20–45%	months–yr	low	Lighter route blocked; works stopped
Environmental prosecutor	15–35%	months–yr	low	Investigation; referral
Mass mobilisation	30–55%	months–yr	low	A mountain held (Loma Miranda)
Everything together (public roused, amparo filed)	45–65%	months–2 yr	low	Annulled, halted, enforced, held
Everything together (state-backed, clean process)	20–45%	months–2 yr	low	Conditioned, delayed, held

The levers that move the needle most are the **amparo** (annulling an authorisation, or compelling enforcement) and **mass mobilisation**, built on the **public study**. Loma Miranda shows the ceiling (a nickel mine held off, a mountain still standing) and the honest floor (a vetoed protective law, a fight that must continue). Most wins are an authorisation refused or conditioned, a full EIA forced, works halted, or the ministry compelled to enforce — each real.

*On cost: the amparo is **free, informal, and open to anyone**, and the environmental study is public by statute — so the two most powerful levers cost almost nothing. That is the Dominican advantage: use them*

precisely and early.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this authorisation, this public study, this amparo — is strong. Answer five questions in writing.

1. What is it, and who's behind it? Name the project, the company, its foreign parent, its financiers.

2. Where is it, and what does it touch? Get the footprint and lay it over **watersheds and water sources**, protected areas, biodiverse mountains and forests, farmland, communities. **A watershed or a protected area is a powerful lever**, so this map matters — Loma Miranda turned on a watershed feeding the nation's rice fields.

3. What stage is it at, and what's the next deadline? Is the study public and the consulta open? Has the authorisation issued (opening the amparo)? These openings are time-bound.

4. What does it still need that it lacks? An authorisation not final, a full EIA not done, a consultation not held. The missing piece is the soft spot.

5. Who else is affected, and who already opposes it? Neighbours, environmental groups, scientific academies, the Church, the wider public. Loma Miranda united all of these.

What this looks like in real life. A community learns a mine or project is planned on its watershed mountain, its study on the lighter route. The five questions yield: a company (and foreign parent) behind it; a site on a watershed (the lever); a study that should be a full EIA with consultation; a project still needing its authorisation; and a coalition of communities, scientists, and the Church. That's the Loma Miranda pattern — demand the public study, force a full EIA, ready the amparo, and rouse the public.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof — and here, the key document is public by statute. Build it in three layers.

Layer one: the paper trail. Get the documents the decision rests on — the **DIA/EIA** (a public document you are entitled to), the licencia or permiso and its conditions, the consulta records, the management programme, the mining title. Then read the study hard for flaws — an understated impact, an ignored alternative, a watershed or protected value minimised, a project wrongly on the lighter route that should require a full EIA.

Layer two: the ground truth. Dated, located photographs and video of the site, the springs and watershed, the forest — baseline images most of all — and the testimony of affected residents (the people who "drink and bathe and live off that water").

Layer three: the map of watershed and protection. Lay the project over the watershed, water sources, and protected values, so the levers are visible. Walking into the Tribunal with the public study, the authorisation, and that map is what makes an amparo bite.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The DIA/EIA (public by statute), the licencia/permiso and conditions, the consulta records, the management programme, the mining title** — from the environment ministry (8A).
- **Watershed and protected-area records** — from the ministry and water authorities.
- **Ownership and financing** — company records and the foreign parent's filings.
- **The watershed-and-protection map** — the watershed, water sources, and protected values, laid over the site.
- **Dated site evidence and named testimony** — photographs marked with date and place, and residents' statements.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and Loma Miranda was held by a coalition of campesinos, scientists, and the Church. Build yours in four moves.

Start with a tight core. The neighbours most affected, the people who know the mountain and its springs, a few tireless organisers, and respected local figures.

Bring in the Church, the scientists, and the environmental movement. Loma Miranda's power came from the Catholic Church (a bishop and a campaigning priest), the Dominican Academy of Sciences, environmental cooperatives, and sympathetic politicians. These allies bring moral authority, scientific weight, and reach — build them in early.

Build for mobilisation — and a national-park vision. Mass mobilisation is a real Dominican lever; a permanent camp and a national-park campaign gave Loma Miranda's movement a rallying goal. Build the coalition and the story so the public will come with you.

Bring in the lawyers — early. Public-interest lawyers who run the amparo (free and informal, but framed well it is powerful — for collective and diffuse rights, and to compel enforcement). Build the case around the public study and the watershed.

Build to last, and hold the mountain. Dominican fights can run for years, and — the Loma Miranda lesson — a win can be unfinished. Build clear roles, a secure archive, a way to decide together, a plan for the toll, and a plan to hold a mountain the protective law never formally shielded.

STEP 4: LEGAL CHALLENGES, THE PUBLIC STUDY & THE AMPARO

Law is one of the Dominican Republic's sharpest levers, because the amparo is so open and powerful.

Get the Public Study and Object First

Everything downstream is stronger if you obtained the **public study** (you are entitled to it by statute) and objected in the **consulta pública**. Where a project is on the lighter route, **demand a full EIA** — forcing it onto the full process is itself a win.

The Acción de Amparo — the Sharpest Lever

The core route is the **acción de amparo** — free, informal, oral, open to anyone, for **collective and diffuse rights**, against **public authorities or private persons**. Use it to **annul** an unlawful authorisation. And use its remarkable second power — the **amparo de cumplimiento** — to **compel the State to enforce a law or**

its own administrative act: a community can sue the ministry itself for failing to enforce, and Dominican courts have ordered action inside a national park and referred a minister's conduct to the prosecutor. Frame the harm as a violation of collective and diffuse environmental rights, and bring the amparo.

Halting Unauthorised Works and the Prosecutor

Two more levers. **Works carried out without authorisation** can be halted. And the **environmental prosecutor** pursues environmental crime, with a minister's conduct referable to the **public prosecutor** — a real accountability route.

The Honest Limits

Straight talk: the amparo and the public study are powerful and cheap, but the system still leans to approval, the political branch can override (as the Loma Miranda veto showed), and enforcement can lag. So use the strong tools — the public study, the consulta, the amparo (including to compel enforcement), the full-EIA demand — but pair them with mass mobilisation and the press, plan to hold a win, and count an authorisation refused or annulled, a full EIA forced, works halted, the ministry compelled to enforce, and a mountain held as wins alongside a clean stop.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

A document becomes a case for a full EIA. Not "the project is bad" but *"a project on a watershed of this importance cannot go on the lighter route — it requires a full EIA and consultation."*

A collective right becomes an amparo. *"This violates our collective and diffuse right to a healthy environment — we ask the court to annul the authorisation."*

An enforcement failure becomes a compulsion. *"The ministry is failing to enforce its own decision — we ask the court to compel it,"* the amparo's remarkable power.

The harm becomes a public story. *"The mountain, the springs, the water our families drink and farm from — for a mine we never agreed to."*

Match it to the venue: the objections to the ministry in the consulta; the collective-rights claim and the enforcement failure to the Tribunal by amparo; the crime to the environmental prosecutor; the human story to the press.

STEP 5: MEDIA STRATEGY

In the Dominican Republic, publicity and mobilisation are inseparable — Loma Miranda became a national cause carried by the Church, the press, and huge public support. A free press and civic networks make the media front central.

Lead with people and place, not procedure. Not "the study was on the wrong category" but "the mountain, the springs, the water our families drink and farm from — for a mine we never agreed to." Use your strongest material: dated photographs, the watershed map, the voices of those who live off the water, and the moral weight of the Church and the scientists.

Work several audiences at once. Local and national press and social media build the mass; the Church and scientific academies lend authority; and a national-park vision gives the story a goal. Make it easy:

captioned photos, accurate summaries, a map, strong voices.

Two hard rules. Accuracy above all — one exaggeration can discredit everything. And frame the amparo and the public study as rights, not favours.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything.

8A — Request for the public study (to the environment ministry).

Subject: Solicitud del estudio ambiental — [proyecto].

"As the environmental study is a public document subject to discussion, we, residents of [place], request the DIA/EIA, the licencia/permiso and its conditions, the consulta records, and the management programme for [project] at [location]. [Contact.]"

8B — Objection in the consulta pública / demand for a full EIA.

Subject: Observaciones — consulta pública sobre [proyecto].

"We, residents of [place], object to [project]: [it threatens our watershed; it was placed on the lighter route and requires a full EIA]. We ask that a full EIA and consultation be required and the authorisation refused. [Attach evidence.]"

8C — To a lawyer (acción de amparo).

Subject: Acción de amparo — [proyecto].

"We instruct you to bring an acción de amparo for our collective and diffuse environmental rights against [the authorisation / the ministry's failure to enforce] regarding [project], and to seek [annulment / an order to enforce]. [Attach the study, the authorisation and our evidence.]"

8D — Amparo de cumplimiento (compel enforcement).

Subject: Amparo de cumplimiento — [decision] on [project].

"The ministry has failed to enforce [its decision / the law] regarding [project] at [location]. We ask the court to compel enforcement. [Attach the decision and evidence.]"

8E — To the environmental prosecutor.

Subject: Denuncia ambiental — [proyecto].

"We report that [project] [operates without authorisation / breaches its conditions / harms a protected watershed] at [location]. We ask you to investigate. [Attach evidence.]"

8F — To the Church / scientific academy.

Subject: Request for support — [proyecto].

"Our community faces [project], which threatens [our watershed mountain]. We ask for your voice and scientific support, as the Church and the Academy of Sciences gave to Loma Miranda. [Contact and evidence summary.]"

8G — Letter to the press.

Subject: [Community] moves to protect [mountain / watershed] from [project].

"For generations the people of [place] have drunk and farmed from the springs of [the mountain] at [location]. Now [project] threatens it. We can provide photographs, the public study, a map and interviews. [Contact.]"

8H — Rallying the community.

Subject: We can stop this — here's how.

"[Project] threatens [our mountain / watershed]. At Loma Miranda, campesinos, scientists, and the Church held off a nickel mine — the mountain still stands. With the public study, a free amparo for our collective rights, and mass mobilisation behind us, we have a real chance — and we must hold the mountain. Please join us. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

1. **Nail down the project and whether it threatens a watershed or protected area.** That's a powerful lever.
2. **Get the public study (8A) — it's yours by statute — and object in the consulta; demand a full EIA (8B).**
3. **Photograph everything, with dates and places.** Baseline images before any damage matter most.
4. **Bring a free acción de amparo for your collective and diffuse rights (8C) — or to compel enforcement (8D).**
5. **Bring in the Church, scientists, and the environmental movement (8F).**
6. **Rouse the public and go to the press (8G/8H).** Loma Miranda was held this way.

Even lean, those six use the two cheap, powerful Dominican levers — the public study and the free amparo — and a roused public.

WHEN THE SYSTEM IS TILTED

The Dominican Republic's tools are real, but the field can be tilted, and you must plan for it.

When the political branch backs the project. As the Loma Miranda veto showed, the executive can override a protective law. Use the amparo, keep the movement alive, hold the mountain, and make the override a public cost.

When a project is put on the lighter route. Demand a full EIA — forcing the full process, with consultation, is a real win and a strong ground.

When the ministry won't enforce. Use the amparo's distinctive power to **compel enforcement** — sue the State to make it act on its own decisions.

What still works, and it's a lot. A free, informal amparo for collective and diffuse rights that can annul an authorisation or compel enforcement; a public environmental study you are entitled to; and a public that has held a mountain.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

The Dominican Republic has documented problems with the capture of licensing and concessions, so this matters.

How to spot it. Authorisations against the evidence; a study written for the proponent; a project kept on the lighter route to dodge scrutiny; a consultation engineered to exclude; benefits to the connected while the community carries the harm.

Who's supposed to guard against it. The **environmental prosecutor** and the **public prosecutor** pursue environmental crime and official misconduct (a minister's conduct can be referred). The **Cámara de Cuentas** examines public money. The **Tribunal Superior Administrativo** and **Tribunal Constitucional** can annul a tainted authorisation and compel enforcement. And the Dominican Republic's **investigative press, scientific academies, and the Church** have exposed captured projects.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the environmental prosecutor, the Cámara de Cuentas, and trusted journalists rather than making accusations you can't back. Pair the exposure with the amparo and the public campaign.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documents (starting with the public study) build your proof; pinning down the watershed aims it; the Church, scientists, and organising build the muscle; the amparo presses the case; the media and mobilisation raise the cost. Together they multiply. One at a time, they stall — and hold the win.

Early on (weeks 1–8): nail down the project, its footprint, and any watershed or protected area; get the public study and object in the consulta, demanding a full EIA; photograph the baseline; bring in the Church, scientists, and a lawyer.

In the thick of it (months–years): bring an acción de amparo for your collective and diffuse rights — or to compel enforcement; halt any unauthorised works; involve the environmental prosecutor; build the mobilisation and open the media front.

The long haul (years): carry the amparo through the Tribunal; keep the movement alive and the mountain held; hold the line for an authorisation refused or annulled, a full EIA forced, works halted, the ministry compelled to enforce, or a mountain held.

FINAL ASSESSMENT

Stopping a destructive project in the Dominican Republic can be done — campesinos, scientists, and the Church held off a nickel mine at Loma Miranda, and the mountain still stands. Hold both truths. The Dominican tools are real and, in two respects, unusually strong: a public environmental study you are entitled to, and a free, informal acción de amparo for collective and diffuse rights that can annul an authorisation or even compel the State to enforce its own decisions. And the constraints are real: a system that leans to approval, an executive that can override a protective law, and enforcement that can lag — so a win may be a mountain held rather than formally protected.

Here's the discipline that wins. Establish whether the project threatens a watershed or protected area — a powerful lever — and get the public study, and read it for flaws. Object in the consulta, and force a full EIA if it was put on the lighter route. Bring a free amparo for your collective and diffuse rights — to annul the authorisation, or to compel the ministry to enforce. Bring in the Church, the scientists, and the environmental movement, rouse the public, and hold the mountain. Count an authorisation refused or annulled, a full EIA forced, works halted, the State compelled to enforce, and a mountain held as wins alongside a clean stop. That's what Loma Miranda did — the public study, the amparo, the Church, and a roused nation together — and its unfinished status is the reason a Dominican win must be defended. So can you.